

# LEGAL HISTORICAL MEMORANDUM

**Subject:** Institutional Records of the Constitution Drafting Committee (1946–1947)  
**Compiled on:** September 3, 2026 | **Jurisdiction:** Republic of India

## 1. Executive Summary & Legal Framework

The Constitution of India was framed by a sovereign Constituent Assembly established under the Cabinet Mission Plan of 1946. Prior to the formal constitution of the Drafting Committee on August 29, 1947, the preparatory architectural work was executed by specialized advisory organs and committees under the legal authority of the Assembly.

## 2. Primary Pre-Constitutive Legal Instruments

- **The Objectives Resolution (December 13, 1946):** Introduced by Pandit Jawaharlal Nehru, this statutory declaration established the structural framework and guiding legal philosophy of the future sovereign state. It bound subsequent committee deliberations to principles of absolute democracy, equality, and socio-economic justice.
- **The Advisory Committee Reports (April – August 1947):** Mandated under the leadership of Sardar Vallabhbhai Patel and other senior statesmen, these constitutional subsets submitted detailed recommendations on Fundamental Rights, Minority Provisions, and Excluded Areas. These elements legally dictated the bounds of the text.
- **The Preliminary Advisory Draft (October 1947 Blueprint):** Structured independently by the Constitutional Adviser, Sir Benegal Narsing Rau, this initial document cataloged 243 Articles and 13 Schedules. It served as the statutory raw text assigned to the Drafting Committee for legal codification.

## 3. Chronological Legal Timeline (1946–1947)

| Statutory Date | Legislative / Assembly Event          | Legal Effect                             |
|----------------|---------------------------------------|------------------------------------------|
| Dec 9, 1946    | First Meeting of Constituent Assembly | Initiated sovereign legislative process. |
| Dec 13, 1946   | Objectives Resolution Moved           | Defined the structural paradigm.         |
| Jan 22, 1947   | Objectives Resolution Adopted         | Unanimously accepted as legal basis.     |
| Aug 29, 1947   | Assembly Resolution passed            | Formal Creation of Drafting Committee.   |
| Aug 30, 1947   | First Session of Drafting Committee   | Dr. B.R. Ambedkar elected Chairman.      |

## 4. Statutory Composition of the Drafting Committee

Pursuant to the Assembly Resolution of August 29, 1947, the committee was composed of the following jurists tasked with refining the legal draft:

- **Dr. B. R. Ambedkar** (Chairman & Chief Architect)
- **Alladi Krishnaswami Ayyar** (Constitutional Law Expert)
- **N. Gopalaswami Ayyangar** (Former Prime Minister of J&K;)
- **K. M. Munshi** (Jurist and Academician)
- **Mohammad Saadulla** (Former Premier of Assam)
- **B. L. Mitter** (Replaced later by N. Madhava Rau)
- **D. P. Khaitan** (Replaced later by T. T. Krishnamachari)